



Privacy Issues

Overview

Privacy law is an area that is continually developing and responding to changes in the way society uses information or technology. The Privacy Act prohibits agencies from releasing information contained in records unless permitted by one of the exceptions. In addition, agencies may have their own privacy policies along with restrictions imposed by collective bargaining agreements. Privacy may also trigger constitutional concerns under the Fourth Amendment. Overall, agencies must ensure they have procedures in place to avoid inappropriate disclosures of employees' private information.

This Quick Start Guide provides a brief overview of the privacy issues that may arise for federal agencies. Our [Quick Start Guide: Medical Privacy Issues](#) focuses on privacy issues agencies may face in connection with medical records and information.

This Quick Start Guide covers the following Key Points:

1. [Privacy Act](#)
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Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the cited source.

Privacy Act

- Unless otherwise permitted under an exception, the Privacy Act prohibits agencies from disclosing any record that is contained in a system of records to any person, or to another agency, except pursuant to a written request by the individual to whom the record pertains. [5 USC Section 552a\(b\)](#).
- The term "record" includes any item, collection, or grouping of information about an individual that is maintained by an agency, including, but not limited to, education, financial transactions, medical history, and criminal or employment history that contains the person's name or identifying number, symbol, or other identifying particular assigned to the individual, such as a finger or voice print or a photograph. [5 USC Section 552a\(a\)\(4\)](#).
- The term "system of records" means any group of records under the agency's control that allows information to be retrieved by the individual's name or some identifying number, symbol, or other identifying particular assigned to the individual. [5 USC Section 552a\(a\)\(4\)](#).
- **Permitted disclosures.** However, agencies may disclose such records to the following:
 - To those officers and employees, of the agency maintaining the record, who need the record to perform their duties. [5 USC Section 552a\(b\)\(1\)](#).
 - As required under the Freedom of Information Act at [5 USC 552](#). [5 USC Section 552a\(b\)\(2\)](#).
 - For a "routine use" -- defined as using the record for a purpose that is compatible with the purpose for which it was collected. [5 USC Section 552a\(b\)\(3\)](#).
 - To the Bureau of the Census for purposes of a census, survey, or related activity; to the National Archives and Records Administration; or to a consumer reporting agency in accordance with [31 USC 3711](#) (e) mandates for collecting government claims. [5 USC Section 552a\(b\)\(4\), \(5\), \(12\)](#).
 - In a form that is not individually identifiable to a recipient who has provided the agency with written assurance that the record will be used solely as a statistical research or reporting record. [5 USC Section 552a\(b\)\(6\)](#).

- Pursuant to a court order; to another U.S. government agency or instrumentality for a civil or criminal law enforcement activity; or to either House of Congress, or any committee or subcommittee with jurisdiction. [5 USC Section 552a\(b\)\(7\), \(9\), \(12\)](#).
- To a person pursuant to a showing of compelling circumstances affecting the health or safety of an individual. [5 USC Section 552a\(b\)\(8\)](#).
- To the comptroller general, or any of his authorized representatives, in the course of the performance of the duties of the Government Accountability Office. [5 USC Section 552a\(b\)\(10\)](#).
- With the exception of disclosures to internal agency records maintenance personnel and under FOIA, agencies must keep an accurate accounting of the records disclosed, including the date, nature, and purpose of the disclosure and the name and address of the person or agency to whom the record is disclosed. The agency must retain this accounting for at least five years or the life of the record, whichever is longer. [5 USC Section 552a\(c\)](#).
- Agencies must allow individuals to review, have a copy, and request amendment of their records. [5 USC Section 552a\(d\)](#).
- Agencies must collect information to the greatest extent practicable directly from the subject individual when the information may result in adverse determinations about an individual's rights, benefits, and privileges under federal programs. [5 USC Section 552a\(e\)\(2\)](#).
- Agencies must establish procedures for reviewing a request from an individual concerning the amendment of any record, for making a determination on the request, for an appeal within the agency of an initial adverse agency determination, and for whatever additional means may be necessary for each individual to be able to fully exercise his rights. [5 USC Section 552a\(f\)\(4\)](#).
- The individual may bring a civil action against the agency in the District Courts of the United States when any agency:
 - Determines not to amend an individual's record as requested, or fails to review the request in compliance with the Privacy Act's requirements.
 - Refuses to comply with an individual's request to review and obtain a copy of his record.
 - Fails to maintain any record concerning any individual with such accuracy, relevance, timeliness, and completeness as is necessary to assure fairness in any determination relating to the qualifications, character, rights, opportunities, or benefits to the individual that may be made based on the record, and consequently makes a determination that is adverse to the individual.
 - Fails to comply with any other Privacy Act provision or its regulations in such a way as to have an adverse effect on an individual.
- The head of the Central Intelligence Agency and agencies or components that enforce criminal laws as its principal function may issue rules exempting themselves from parts of the Privacy Act. [5 USC Section 552a\(j\)\(1\)-\(2\)](#).
- Heads of agencies may also issue rules to exempt themselves from parts of the Privacy Act if classified pursuant to an executive order for national defense or foreign policy; certain qualifying law enforcement investigatory material; information related to providing protective services to the president or other qualifying individuals; statistical records required by statute; investigatory material compiled to determine suitability, eligibility, or qualifications for federal employment when doing so would reveal a source's identity which was promised to be kept confidential; testing or examination material used to determine qualifications for employment; evaluation material for armed services promotions when disclosure would reveal a source's identity which was promised to be kept confidential.

Employee monitoring

- Although employees have the right to be free from unreasonable search and seizure under the Fourth Amendment, the protection only applies when the situation warrants a reasonable expectation of privacy.
- The Supreme Court ruled that a state employer had the right to audit an employee's text messages on an employer-provided pager to determine whether overages were due to personal use. *Ontario v. Quon*, [110 LRP 35031](#), 560 U.S. 746 (U.S. 2010).
- An August 2009 [Department of Justice opinion](#) "conclude[d] that the adoption, implementation, and enforcement of model log-on banners or model computer-user agreements eliminates federal employees' reasonable expectation of privacy in their uses of government-owned information systems with respect to the lawful government purpose of protecting federal systems against intrusions and exploitations." Therefore, an agency is in compliance with the Fourth Amendment so long as it "consistently adopts, implements, and enforces the model log-on banner or model computer-user agreements ... or their substantial equivalents."

- The court found that the recording of all calls was an overly intrusive method of dealing with concern that customers were making irate calls to employees or that employees were making too many personal telephone calls. *Nanducci v. Village of Bellwood*, [110 LRP 40732](#) (N.D. Ill. 2006), *aff'd* 572 F.2d 313 (7th Cir. 2009).
- The court found an employee did not have a legitimate expectation of privacy in files downloaded from the Internet because the employer's policy restricted Internet use to business purposes and indicated that Internet use would be monitored. *United States v. Simons*, [110 LRP 40725](#), 206 F.3d 392 (4th Cir. 2000).
- The court said that an employee could have reasonable expectations of privacy on a government-owned email system where the military member had her own email account protected by a password, even though the network administrator had access to her messages. *United States v. Long*, [110 LRP 40747](#) (CAAF 2006).
- The Whistleblower Protection Act, [5 USC 2302](#) (b)(8), protects certain disclosures made to Congress so long as they are not otherwise prohibited by law.
- Intercepting passwords to personal email accounts of employees for purposes of logging in to search for archived messages from and to Congress and the OSC could violate the Stored Communications Act, [18 USC 2701 through 18 USC 2712](#), in the absence of a subpoena.

Investigations and litigation

- Agency investigations, including EEO and disciplinary investigations among others, must ensure the compliance with the agency's privacy policy and the Privacy Act. Agencies may stipulate their privacy requirements as part of the statement of work provided to the investigator when applicable.
- Agencies should have procedures to ensure any documents disclosed are sanitized of personally identifiable information not necessary for the investigation. Generally, this means redacting Social Security numbers and dates of birth, but may also include home addresses, home phone numbers, personal references, and veterans' claim or service numbers.
- The Supreme Court held that the government could inquire into the employees' past drug use and related counseling on the SF-85 and Form 42, even if they implicated a privacy interest, in a background investigation that is subject to the Privacy's Act safeguards against public disclosure. *NASA v. Nelson*, [111 LRP 3506](#) (U.S. 2011).
- The Privacy Act requires agencies to "collect information to the greatest extent practicable directly from the subject individual when the information may result in adverse determinations about an individual's rights, benefits and privileges under Federal programs." But to prevail, the employee must establish that: 1) the agency failed to elicit information directly from him "to the greatest extent practicable"; 2) the violation was "intentional or willful"; and 3) the action had an "adverse effect" on him. *Hooker v. National Aeronautics and Space Administration (GSFC)*, [114 LRP 28216](#) (D. Md. 2014).
- The Privacy Act "does not require that an agency seek information only from a person it investigates; the Act allows agencies to question third parties where it would be impractical not to do so." The court found the Navy needed to interview third parties because: 1) the allegations were "entirely subjective" in nature; and 2) the only evidence of the alleged misconduct were the coworkers' testimonies. *Hogan v. England*, [115 LRP 563](#) (4th Cir. 2005, *nonprecedential*).
- During discovery, agency requests for the medical records of complainants should only occur to establish or challenge disability status or the right to reasonable accommodation in Rehabilitation Act cases, or when a complainant is asserting a claim for compensatory damages and has sought medical treatment for one or more stress-related conditions. In such instances, agency requests for medical records shall be narrowly tailored to the conditions and temporal scope at issue. [EEOC MD-110, Chapter 7](#).
- Where a complainant is pro se, agencies must request prior permissions from the administrative judge before making requests for medical information. The administrative judge must advise the parties of this provision at the initial status conference and explain that a complainant should contact the administrative judge to request a protective order if the complainant believes agency counsel is seeking overly broad or intrusive medical records through discovery requests. [EEOC MD-110, Chapter 7](#).
- Agency requests for wage information should only occur when the complainant is making a back pay claim and has received compensation for subsequent employment. Agencies are not authorized and must request prior permission from the administrative judge before making requests for production of a complainant's tax records except with respect to W-2 earned income and Schedule C profit or loss documents. [EEOC MD-110, Chapter 7](#).

Agency privacy policies

- In addition to statutory privacy requirements, agencies may also have their own privacy policies and may pursue disciplinary action for violations.
- The MSPB upheld the removal of an employee for unauthorized access to a medical record and lack candor when she accessed an employee's medical record in the Computerized Patient Record System without authorization or a legitimate business reason, which violated agency privacy and security policies. *Goodblanket v. Department of Veterans Affairs*, [114 LRP 49010](#) (MSPB 2014, *nonprecedential*).
- The court imposed a balancing test between the employer's "legitimate need to maintain an orderly workplace and to protect confidential business and client information" and the employee's need to be properly safeguarded from retaliatory actions. *Niswander v. Cincinnati Insurance Co.*, [114 LRP 18268](#), 529 F.3d 714 (6th Cir. 2008).
- Under *Niswander*, the balancing test requires a determination of whether the disclosure was reasonable under the circumstances taking into consideration the following factors:
 - How the documents were obtained.

- To whom the documents were produced or disclosed.
 - The contents of the documents, including the need to keep the information confidential and their relevance to the employee's claims.
 - Why the documents were produced or disclosed, such as in direct response to a discovery request.
 - The scope of the employer's privacy policy.
 - The ability of the employee to preserve the evidence in a manner that does not violate the employer's privacy policy.
- The MSPB concluded that the last four *Niswander* factors favored the agency because the emails contained highly sensitive information, such as protected medical information, and had little relevance to the employee's grievance; they were not produced in direct response to a discovery request; the agency's privacy policy prohibited the disclosures without approval and the employee violated the policy even though she was aware of the prohibition; and the employee could have taken reasonable measures to redact sensitive information. The MSPB upheld the agency's removal of the employee and reversed the administrative judge's decision to mitigate the penalty to a 60-day suspension. *Bennett v. Department of Health and Human Services*, [114 LRP 15416](#) (MSPB 2014, *nonprecedential*).
 - The MSPB removed an employee when the employee photocopied government documents including employee Social Security numbers, a personnel roster, and division case review sheets, and provided them to his attorney to support an MSPB appeal. *Heath v. Department of Transportation*, [94 FMSR 5540](#), [64 MSPR 638](#) (MSPB 1994).
 - The MSPB will not seal documents that are already protected by the Privacy Act at [5 USC Section 552a](#). *DeStefano v. Department of Defense*, [105 LRP 45105](#) (MSPB 2005); *Nefcy v. Environmental Protection Agency*, [103 LRP 43484](#), [94 MSPR 435](#) (MSPB 2003).

Routine use

- Routine use lists are usually posted on the agency's website, and updates are regularly published in the *Federal Register*. They may also outline the agency's policy on disclosure of records to unions when needed to carry out their representational responsibilities.
- To qualify as a routine use exception to the Privacy Act, an agency's disclosure of a record must be both (a) "for a purpose which is compatible with the purpose for which it was collected" and (b) within the scope of an agency-published routine use notice. DHS's disclosure of the inspector general report on the employee to the employee's new employer satisfied both elements and qualified as a routine use. *Ames v. Department of Homeland Security and Department of Defense*, [117 LRP 26455](#), 861 F.3d 238 (D.C. Cir. 2017).
- The D.C. Circuit concluded that the purpose in disclosing the report -- to enable DOD to determine whether the employee should remain employed -- was compatible with DHS' purpose in producing the report, which was to determine whether she had committed wrongdoing that could affect her suitability for federal employment. "After all, it would be strange indeed if an employee such as Ames could avoid the consequences of one agency's Inspector General investigation by simply high-tailing it to another agency before the Inspector General's investigation was finished." *Ames v. Department of Homeland Security and Department of Defense*, [117 LRP 26455](#), 861 F.3d 238 (D.C. Cir. 2017).
- The D.C. Circuit also found that DHS's disclosure of IG report to the DOD met the requirements of two DHS routine use notices. As required by Routine Use G, DHS disclosed records to DOD which was charged with investigating or prosecuting violations of law, where the record indicates a violation or potential violation of law, and where such disclosure is "proper and consistent with the official duties of the person making the disclosure." Under Routine Use H, DHS may disclose records to other federal agencies to "provide intelligence, counterintelligence, or other information for the purposes of intelligence, counterintelligence, or antiterrorism activities authorized by U.S. law, Executive Order, or other applicable national security directive." As required by Routine Use H, DHS disclosed the report so that DOD could determine whether the employee should continue to be involved in determining who may participate in such intelligence, counterintelligence, or antiterrorism activities. *Ames v. Department of Homeland Security and Department of Defense*, [117 LRP 26455](#), 861 F.3d 238 (D.C. Cir. 2017).
- The agency violated the statute when it failed to provide the union the phone logs from the supervisor of a grievant who wasn't selected for a promotion. The supervisor's phone logs were both relevant and necessary to the union's representational duties, so the Privacy Act's routine-use exception allowed their disclosure. *Pension Benefit Guaranty Corporation*, [116 LRP 17859](#), [69 FLRA 323](#) (FLRA 2016).
- **Broida:** If a union uses the Freedom of Information Act, it will have an appeal within the agency, and it will have access to federal district court should it desire to litigate the denial of information. If the agency claims that the release of information under FOIA would invade personal privacy, the union will be called on to provide an explanation or justification for its request so that the agency may conduct a balancing test to determine whether the release of information would constitute a clearly unwarranted invasion of privacy. [Broida Guide to FLRA Law: Chapter 03: Labor Organizations, Subchapter 05: Right to Information, Section H: FOIA; Privacy Act and Privacy Interests](#).
- Under the "routine use" provisions of the regulations governing release of information under the Privacy Act, agencies are entitled to obtain copies of certain materials in their employees' workers' compensation files. Agencies must use these copies in a manner consistent with the reason the information was collected. Agencies may not use copies of information from claim files in connection with EEO complaints, disciplinary actions, or other administrative actions without the employee's consent. See [OWCP Procedure Manual 1-0400](#). For more, see [Quick Start Guide: Privacy of Claims Documents](#).

Labor relations and privacy

- A U.S. District Court couldn't hear the unions' claim that the vaccine mandate in Executive Order 14043 invaded their members' constitutional privacy rights and interfered with their free exercise of religion. Because no federal employee had been disciplined or

terminated due to the Executive Order, the plaintiff unions didn't establish that they had standing to challenge the EO. *AFGE, Local 2018, et al. v. Biden*, [122 LRP 12461](#), No. 21-5172 (E.D. Pa. 2022).

- The FLRA upheld an arbitration award ruling that the agency -- relying on the Privacy Act and FOIA exemptions -- properly balanced the relevant privacy interests when it denied a grievant a copy of its investigative report of the grievant's hostile work environment claim. *Department of the Navy, Puget Sound Naval Shipyard and Intermediate Maintenance Facility, Bremerton, Wash.*, [120 LRP 33240](#), [71 FLRA 1033](#) (FLRA 2020).
- In ruling that the agency violated the statute and the agreement when it failed to respond to the union's information requests, an arbitrator rejected the agency's contention that the Privacy Act barred disclosure of the relevant documents. The FLRA upheld the arbitrator's award. *Department of Veterans Affairs, John J. Pershing VAMC*, [120 LRP 33357](#), [71 FLRA 1039](#) (FLRA 2020).
- An arbitration award requiring the agency to notify the union when a substance tester is on-site isn't contrary to the Privacy Act, the Rehabilitation Act, or 42 CFR Part 2. *Department of Transportation, FAA*, [120 LRP 13021](#), [71 FLRA 694](#) (FLRA 2020).
- The agency violated the statute by refusing to provide information on alleged managerial misconduct requested by the union. Considering the nature and scope of management's wrongdoing, the public interest in the disclosure outweighed the relevant privacy interests. *Department of Veterans Affairs, VAMC Decatur, Ga.*, [119 LRP 44586](#), [71 FLRA 428](#) (FLRA 2019).
- The agency violated the bargaining agreement by refusing to disclose information that the grievants had requested about the complaints against them and the resulting investigations. Because the records related to the misconduct allegations were redacted and disclosure wouldn't result in a clearly unwarranted invasion of personal privacy, the Privacy Act didn't bar their disclosure. *Social Security Administration*, [119 LRP 35597](#), [71 FLRA 333](#) (FLRA 2019).
- The agency didn't violate the Privacy Act when it disclosed to an agency attorney unredacted copies of performance appraisals of three union representatives. The attorney needed those records to prepare the agency's legal defenses, so there was no Privacy Act violation. *Department of Veterans Affairs, Veterans Benefit Administration, Nashville Regional Office*, [119 LRP 34925](#), [71 FLRA 322](#) (FLRA 2019).
- The agency didn't violate the statute by withholding the grievant's coworker's performance information in a non-selection dispute. Although the union requested "sanitized data," the Privacy Act still prohibited disclosure because the request concerned only one employee (the coworker), so sanitization wouldn't mitigate the coworker's privacy interests. *Pension Benefit Guaranty Corporation*, [116 LRP 17859](#), [69 FLRA 323](#) (FLRA 2016).
- The agency violated the statute when it failed to provide the union the phone logs from the supervisor of a grievant who wasn't selected for a promotion. The supervisor's phone logs were both relevant and necessary to the union's representational duties, so the Privacy Act's routine-use exception allowed their disclosure. *Pension Benefit Guaranty Corporation*, [116 LRP 17859](#), [69 FLRA 323](#) (FLRA 2016).
- The Office of Management and Budget's published guidelines regarding the Privacy Act state that "practical considerations may dictate that a third-party source be used as a source of information in some cases," and recognize that "it may well be that the kind of information needed can only be obtained from a third party," particularly in "investigations of possible criminal misconduct." *AFGE, Local 1336 and Social Security Administration*, [115 LRP 26606](#), [68 FLRA 704](#) (FLRA 2015); OMB's Privacy Act Guidelines, 40 Fed. Reg. 28,949 (1975).
- The FLRA rejected a claim that, during its investigation of a grievant's alleged misconduct, the agency violated the Privacy Act by interviewing witnesses before it interviewed the grievant. The FLRA explained that the Privacy Act requires the collection of information from the subject individual -- before interviewing other witnesses -- only where "practicable" to do so, and courts have held that it wasn't practicable to do so under the circumstances present. *AFGE, Local 1336 and Social Security Administration*, [115 LRP 26606](#), [68 FLRA 704](#) (FLRA 2015).
- FOIA broadly requires the disclosure of government records, but contains an exemption (Exemption 6) for "personnel and medical files and similar files the disclosure of which would constitute a clearly unwarranted invasion of personal privacy." In determining whether a disclosure "would constitute a clearly unwarranted invasion of personal privacy," the FLRA balances the public interest in disclosure against the employee privacy interests at stake. *Department of Homeland Security, Citizenship and Immigration Services and AFGE, National Citizenship and Immigration Services, Council 119*, [115 LRP 5377](#), [68 FLRA 272](#) (FLRA 2015).
- The FLRA has held that the Privacy Act does not categorically forbid the disclosure of the names of award recipients. However, where the disclosure of award recipients' names would necessarily reveal those recipients' performance ratings, the Privacy Act bars disclosure of their names. *Department of Homeland Security, Citizenship and Immigration Services and AFGE, National Citizenship and Immigration Services, Council 119*, [115 LRP 5377](#), [68 FLRA 272](#) (FLRA 2015).
- The Privacy Act prohibits the disclosure of documents relating to an administrative investigation of employees for misconduct when such disclosure would reveal the names of the investigated employees. The agency didn't violate the labor relations statute when it declined to furnish investigative reports with employees' names included because such a disclosure was prohibited by law. *Department of Justice, Federal Bureau of Prisons, USP Marion, Ill. and AFGE, Local 2343*, [112 LRP 26081](#), [66 FLRA 669](#) (FLRA 2012).

Freedom of Information Act -- FOIA

- Under the Freedom of Information Act, any person has a right to obtain access to federal agency records, unless such records are protected from public disclosure by one of nine exemptions or by one of three special law enforcement record exclusions. [5 USC 552](#).
- Individuals must make FOIA requests by following the particular agency's procedures. [5 USC 552](#) (a).
- Under [5 USC 552](#) (b), an individual does not have the right to records if the records are protected from public disclosure by one of nine exemptions, involving matters that are:
 - Specifically authorized under criteria established by an executive order to be kept secret in the interest of national defense or foreign policy and are in fact properly classified pursuant to such executive order.
 - Related solely to the internal personnel rules and practices of an agency.
 - Specifically exempted from disclosure by statute other than [5 USC Section 552b](#) if that statute meets certain criteria. [5 USC 552](#) (b)(1)-(3).
 - Trade secrets and commercial or financial information obtained from a person and privileged or confidential.
 - Inter-agency or intra-agency memorandums or letters that would not be available by law to a party other than an agency in litigation with the agency.
 - Personnel and medical files and similar files the disclosure of which would constitute a clearly unwarranted invasion of personal privacy.
 - Records or information compiled for law enforcement purposes, but only to the extent that the production of such law enforcement records or information:
 - Could reasonably be expected to interfere with enforcement proceedings.
 - Would deprive a person of a right to a fair trial or an impartial adjudication.
 - Could reasonably be expected to constitute an unwarranted invasion of personal privacy.
 - Could reasonably be expected to disclose the identity of a confidential source, including a state, local, or foreign agency or authority or any private institution that furnished information on a confidential basis, and, in the case of a record or information compiled by criminal law enforcement authority in the course of a criminal investigation or by an agency conducting a lawful national security intelligence investigation, information furnished by a confidential source.
 - Would disclose techniques and procedures for law enforcement investigations or prosecutions, or would disclose guidelines for law enforcement investigations or prosecutions if such disclosure could reasonably be expected to risk circumvention of the law.
 - Could reasonably be expected to endanger the life or physical safety of any individual.
 - Contained in or related to examination, operating, or condition reports prepared by, on behalf of, or for the use of an agency responsible for the regulation or supervision of financial institutions.
 - Geological and geophysical information and data, including maps, concerning wells. [5 USC 552](#) (b).
- FOIA does not authorize unfettered access to agency records. The public's right to information is balanced against other competing interests. *Cochran v. Department of Homeland Security, Federal Emergency Management Agency*, [119 LRP 12951](#) (D. Md. 2019), citing *Havemann v. Colvin*, [119 LRP 13029](#), 537 F. App'x 142 (4th Cir. 2013).
- An agency responding to a FOIA request must conduct a search reasonably calculated to uncover all relevant documents and, if challenged, must demonstrate beyond material doubt that the search was reasonable. *Cochran v. Department of Homeland Security, Federal Emergency Management Agency*, [119 LRP 12951](#) (D. Md. 2019), citing *Elliott v. Department of Agriculture*, [119 LRP 13021](#), 596 F.3d 842 (D.C. Cir. 2010).
- The issue is not whether any further documents might conceivably exist but rather whether the government's search for responsive documents was adequate. *Cochran v. Department of Homeland Security, Federal Emergency Management Agency*, [119 LRP 12951](#) (D. Md. 2019), citing *Perry v. Block*, [119 LRP 13035](#), 684 F.2d 121 (D.C. Cir. 1982).
- The burden is on the government to demonstrate that it has thoroughly searched for the requested documents where they might reasonably be found. *Cochran v. Department of Homeland Security, Federal Emergency Management Agency*, [119 LRP 12951](#) (D. Md. 2019), citing *Krikorian v. Department of State*, [119 LRP 13031](#), 984 F.2d 461 (D.C. Cir. 1993).
- The agency is not obligated to look beyond the four corners of the request or otherwise speculate about potential leads. Rather, the adequacy of an agency's search is measured by a standard of reasonableness. *Cochran v. Department of Homeland Security, Federal Emergency Management Agency*, [119 LRP 12951](#) (D. Md. 2019), citing *McGehee v. Central Intelligence Agency*, [119 LRP 13033](#), 697 F.2d 1095 (D.C. Cir. 1983).
- The fact that there may possibly be additional documents is not relevant to the question of whether the agency conducted an adequate search for the documents. *Cochran v. Department of Homeland Security, Federal Emergency Management Agency*, [119 LRP 12951](#) (D. Md. 2019), citing *Goldner v. Social Security Administration*, [119 LRP 13025](#), 293 F. Supp. 3d 540 (D. Md. 2017).
- The government may rely upon affidavits to show that it has conducted a reasonable search, as long as the affidavits are relatively detailed and nonconclusory and submitted in good faith. *Cochran v. Department of Homeland Security, Federal Emergency*

Management Agency, [119 LRP 12951](#) (D. Md. 2019), *citing Golan v. Central Intelligence Agency*, [119 LRP 13319](#), 607 F.2d 339 (D.C. Cir. 1979).

- The affidavit must be reasonably detailed, setting forth the search terms and the type of search performed, and averring that all files likely to contain responsive materials (if such records exist) were searched so as to give the requesting party an opportunity to challenge the adequacy of the search. *Cochran v. Department of Homeland Security, Federal Emergency Management Agency*, [119 LRP 12951](#) (D. Md. 2019), *citing Ethyl Corporation v. Environmental Protection Agency*, [119 LRP 13023](#), 25 F.3d 1241 (4th Cir. 1994).
- If the agency shows that its search was reasonable, the burden shifts to the requester to show that the search was not in fact in good faith or that the agency is otherwise acting in bad faith (e.g., by denying the existence of documents it in fact possesses). *Cochran v. Department of Homeland Security, Federal Emergency Management Agency*, [119 LRP 12951](#) (D. Md. 2019), *citing Greenberg v. Department of the Treasury*, [119 LRP 13027](#), 10 F. Supp. 2d 3 (D.D.C. 1998).
- **Case examples**
 - The agency satisfied its burden to demonstrate that it thoroughly searched for the requested documents where they might reasonably be found where the disclosure branch chief who supervised FOIA requests set out the process that was followed in connection with a former employee's FOIA request. *Cochran v. Department of Homeland Security, Federal Emergency Management Agency*, [119 LRP 12951](#) (D. Md. 2019).
 - A former employee who sought all documents pertaining to her security clearance failed to demonstrate that the documentation she sought actually existed. She failed to provide any support for her assertion that the agency "must" have the document in its possession. *Cochran v. Department of Homeland Security, Federal Emergency Management Agency*, [119 LRP 12951](#) (D. Md. 2019).

Other Resources

- [Quick Start Guide: Medical Privacy Issues](#)
- [Quick Start Guide: Confidentiality in MSPB Cases](#)
- [Quick Start Guide: Privacy of Claims Documents](#)
- [Broida Guide to MSPB Law: "John Doe" Appeal -- Protecting Appellant's Privacy](#)

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